

24STCV28409 24STCV28409

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-17

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Case Number: 24STCV28409 Hearing Date: September 17, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
17, 2026

CASE NAME: In
The Passing Lane LLC v. Lightning Motors Corporation

CASE NO.: 24STCV28409

MOTION

FOR AN ORDER TO SHOW CAUSE RE: CONTEMPT AND FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiff
In The Passing Lane LLC

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An
order commanding non-party Daily Direct LLC d/b/a Haulbikes to show cause as to
why they should not be held in contempt for failing to comply with the court's
April 23, 2026 order and issuing monetary sanctions in the amount of \$3,000.

TENTATIVE RULING:

1. Motion

for an order to show cause re contempt is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On October 29, 2024, Plaintiff In The Passing Lane, LLC (Plaintiff) filed a complaint against Defendant Lightning Motors Corporation (Defendant) with causes of action for: (1) breach of contract; (2) breach of implied warranty; (3) breach of express warranty; violation of Song-Beverly Act; (5) and violation of Commercial Code.

According to the complaint, Plaintiff purchased a luxury custom LS-218 electric motorcycle for over \$41,000, but upon delivery the vehicle arrived visibly damaged, poorly assembled, and unsafe for use. Plaintiff immediately notified Defendant, requested that the motorcycle be picked up and refunded, and repeatedly raised concerns about defects and safety risks, including those associated with lithium-ion batteries. Defendant refused to refund or retrieve the motorcycle, leaving Plaintiff with an unusable vehicle and ongoing storage and ownership expenses.

On December 3, 2024, Defendant filed an answer.

On February 13, 2026, Defendant filed a motion for summary judgment, or alternatively, summary adjudication (MSJ).

On February 20, 2026, Plaintiff filed a motion to compel compliance with deposition subpoena for production of business records to Daily Direct LLC d/b/a Haulbikes which the court GRANTED.

On April 22, 2026, Plaintiff filed an ex parte application to continue the hearing on the MSJ, trial, and all related dates which the court GRANTED in part.

On May 28, 2026, Plaintiff filed another ex parte application to continue the MSJ, trial, and all related dates which the court GRANTED.

On June 24, 2026, Plaintiff filed the instant motion for an osc re: contempt against Daily Direct LLC dba Haulbikes and monetary sanctions

of \$3,000.

On July 21, 2026, Plaintiff filed another ex parte application to continue the MSJ and to advance the hearing date on the instant motion for an OSC re contempt which the court GRANTED in part. Plaintiff provided notice of ruling on July 27, 2026.

Oppositions to the motion for an osc re: contempt were due on or before September 3, 2026. As of September 14, 2026, the court has not received any oppositions.

LEGAL STANDARD:

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (CCP § 2025.480(a).)

"If a deponent fails to obey an order entered under this section, the failure may be considered a contempt of court." (CCP § 2025.480(k).)

ANALYSIS:

Plaintiff contends relief is warranted because Haulbikes received notice of the court's order granting Plaintiff's motion to compel compliance with third party subpoena, Haulbikes reached out to Plaintiff, and then stopped communicating with Plaintiff after promising on multiple occasions to produce documents.

Here, relief is warranted. First, Plaintiff demonstrated Haulbikes' disobedience of the court's April 23, 2026 order compelling compliance with third party subpoena and the imposition of sanctions. (Declaration of Saam Takaloo ¶¶ 8, 9, 10.) As such, an OSC re Contempt is proper. The court defers ruling on the additional monetary sanctions until such hearing.

Accordingly, the court GRANTS Plaintiff's motion for an order to show cause re: contempt.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for an order to show cause re contempt is GRANTED;

2. Moving

party is to prepare a proposed order with a proposed hearing date and then personally serve the order.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 17, 2026 _____ Upinder
S. Kalra

Judge

of the Superior Court